

		the arbitrator also has discretion to allow additional discovery. (Levine Decl., Ex. D, § 13(f); see also <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 506 [“Allowing the arbitrator to deviate from agreed-upon default discovery limits ensures that neither party will be unfairly hampered in pursuing a statutory claim based on circumstances that arise postformation”]; <i>Armendariz v. Foundation Health Psychcare Services, supra</i> at 105–106 [parties to an arbitration agreement are “permitted to agree to something less than the full panoply of discovery provided” in the California Arbitration Act]; <i>Martinez v. Master Protection Corp.</i> (2004) 118 Cal.App.4th 107, 118 [“discovery limitations are an integral part of the arbitration process ... [a]dequate discovery is not synonymous with unfettered discovery”]; <i>Dotson v. Amgen, Inc.</i> (2010) 181 Cal.App.4th 975, 983 [“arbitration is meant to be a streamlined procedure ... [l]imitations on discovery, including the number of depositions, is one of the ways streamlining is achieved”].) Nor has plaintiff shown that the Arbitration Policy & Agreement permits defendants to recover attorney fees otherwise unavailable by law. (Cal. Gov’t Code, § 12965, subd. (c)(6) [governing recovery of attorney fees in FEHA actions; Ex. D to Levine Decl., § 13(h); [with exceptions not relevant here, “each Party shall pay its own attorneys’ fees and costs ... <u>[i]f however, any Party prevails on a statutory claim that affords the prevailing party attorneys’ fees and costs</u>, or if there is a written agreement providing for attorneys’ fees and costs, the arbitrator may award reasonable fees and costs to the prevailing party <u>in accordance with applicable law</u>,” emphasis added].) Defendants’ evidentiary objection nos. 9 and 11 to the Solorzano Decl. are SUSTAINED (relevance) and otherwise OVERRULED. This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.) <i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 26, 2027 at 8:30 a.m. in Department C44.</i> Moving parties shall give notice.
12	Weaver vs. Chauhan 2025-01500925	Demurrer to Amended Complaint No tentative. The court will address proof of service issues before ruling on the merits of the demurrer.